

## LANDLORD AND TENANT BOARD

### Associate Chair's Message

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| <b>Lilian Ma, Associate Chair</b><br><i>Landlord and Tenant Board</i> | <b>Alternate Executive Chair</b><br><i>Social Justice Tribunals Ontario</i> |
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Last year, the Landlord and Tenant Board (LTB) made great strides on a number of initiatives to help us achieve our mission to provide fair, effective, timely and accessible dispute resolution for the residential rental housing sector in Ontario.

In November 2011, as a result of client feedback, the Board implemented a new scheduling model for those application types that make up the majority of the applications submitted. This initiative has proven to be successful in increasing the predictability of our scheduling and reducing time to hearing for both landlord and tenant applications.

We appreciate the input of stakeholders who participated in our first online consultation this past fiscal year about proposed changes to the rules of practice, L1/L9 hearing day update form and request for consent form. This online consultation enabled us to reach broader and different audiences offering us the ability to improve access to justice.

As part of its overall efficiencies exercise, LTB is also streamlining the processing of the L5 application for above the guideline rent increases and the A4 application to vary the rent reduction.

E-filing is an exciting initiative for the Landlord and Tenant Board. Although it is in the initial phases, this system will offer secure and simple filing and will allow individuals to file applications online quickly, at any time and from anywhere. I appreciate the ongoing commitment of members and staff in delivering the Board's important services and to tenants and landlords and for their valuable input into the Board's initiatives.

### Legislative Authority

The Landlord and Tenant Board (LTB) draws its legislative authority from the *Residential Tenancies Act*, 2006 (the RTA or the Act), which sets out, in section 1, the following purposes for the Board:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants and;
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

### Resolving disputes

#### Adjudication

Subsection 168(2) of the RTA provides that the Board has exclusive jurisdiction to determine all applications under the Act, while section 174 provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act.

Pursuant to section 183 of the Act, the Board strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

Hearings are held at the LTB's eight regional offices as well as at a number of other locations across the

province.

## Mediation

Section 194 of the Act allows the Board to mediate disputes, if both parties agree to try this approach. Board Mediators are available to meet with parties to try to help them reach a workable agreement that is acceptable to both sides.

## Providing Information

Section 177 of the RTA requires the LTB to give information to landlords and tenants about their rights and obligations. The LTB fulfills this mandate by providing counter-service in its offices across the province, and through a website and a virtual call centre. LTB received 502,321 telephone calls in 2012-2013.

## Amendments to the RTA

Effective January 1, 2012, the RTA was amended by Bill 140 as part of the Long Term Affordable Housing Strategy of the Ministry of Housing. Bill 140 includes an amendment to the RTA that will require the Board to serve the notice of hearing and application to the respondent unless the Board, as set out in its Rules, orders the applicant to do so. A proclamation date for this provision has yet to be announced. The LTB is preparing to implement the changes required by this amendment and will consult with its stakeholders.

# Operational Highlights

## Orientation to LTB for cross-appointees and new appointees

The LTB welcomed a number of cross-appointments from other SJTO tribunals as well as new LTB members. They were provided with training on the RTA to prepare them for LTB hearings.

## Stakeholder engagement

During this fiscal year, the LTB met with the Stakeholder Advisory Committee (SAC), which consists of representatives from the Advocacy Centre for Tenants Ontario (ACTO), the Federation of Rental Housing Providers of Ontario (FRPO) and the Ontario Non-Profit Housing Association (ONPHA). The on-going dialogue between the Board and stakeholder representatives ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines. The SAC meetings are also an important forum for providing progress updates on LTB initiatives as well as responding to the concerns from landlord and tenant groups.

# Statistics/ Commentary

From April 1, 2012 to March 31, 2013, the LTB received 82,192 applications. This is an increase of 1,108 applications compared to the 2011-2012 caseload. Over the last three years, there has been an increase of more than six per cent in applications filed with the Board.

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to an adjudicative tribunal. This past year was no exception, with 91 per cent of applications filed by landlords and nine per cent filed by tenants.

Applications for termination of tenancy and eviction continue to represent the bulk of the LTB's workload. Of the total applications received by the LTB, 66.65 per cent were for termination of tenancy because of arrears of rent.

## Landlord Applications

The following table shows the number of each application type filed by landlords for the 2012-2013 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by landlords.

**Landlord Applications by Type**

| Case type    | Application Description                       | 2012-2013       | 2011-2012       | 2010-2011       |
|--------------|-----------------------------------------------|-----------------|-----------------|-----------------|
| A1           | Determine Whether the Act Applies             | 62 (0.08%)      | 50 (0.07%)      | 48 (0.07%)      |
| A2           | Sublet or Assignment                          | 237 (0.32%)     | 234 (0.32%)     | 199 (0.28%)     |
| A3           | Combined Application (usually includes an L1) | 3,936 (5.24%)   | 3,736 (5.05%)   | 3,066 (4.34%)   |
| A4           | Vary Rent Reduction Amount                    | 209 (0.28%)     | 106 (0.14%)     | 182 (0.26%)     |
| L1           | Terminate & Evict for Non-Payment of Rent     | 54,777 (72.97%) | 54,847 (74.16%) | 53,182 (75.29%) |
| L2           | Terminate for Other Reasons & Evict           | 7,102 (9.46%)   | 6,867 (9.28%)   | 6,158 (8.72%)   |
| L3           | Termination – Tenant Gave Notice or Agreed    | 1,225 (1.63%)   | 1,263 (1.71%)   | 1,075 (1.52%)   |
| L4           | Terminate the Tenancy – Failed Settlement     | 5,549 (7.39%)   | 4,905 (6.63%)   | 4,805 (6.80%)   |
| L5           | Rent Increase Above the Guideline             | 296 (0.39%)     | 252 (0.34%)     | 391 (0.55%)     |
| L6           | Review of Provincial Work Order               | 11 (0.01%)      | 13 (0.02%)      | 7 (0.01%)       |
| L7           | Transfer Tenant to Care Home                  | 0 (0.00%)       | 1 (0.00%)       | 1 (0.00%)       |
| L8           | Tenant Changed Locks                          | 45 (0.06%)      | 21 (0.03%)      | 26 (0.04%)      |
| L9           | Application to Collect Rent                   | 1,620 (2.15%)   | 1,664 (2.25%)   | 1,499 (2.12%)   |
| <b>Total</b> |                                               | 75,069          | 73,959          | 70,639          |

L1 applications were scheduled, on average, within 20.7 business days of the date the applications were filed, and the order issued, on average, within 3.4 business days of the final hearing.

**Tenant Applications**

The following table shows the number of each application type filed by tenants for the 2012-2013 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by tenants.

**Tenant Applications By Type**

| Case type | Application Description | 2012-2013 | 2011-2012 | 2010-2011 |
|-----------|-------------------------|-----------|-----------|-----------|
|-----------|-------------------------|-----------|-----------|-----------|

|              |                                      |                |                |                |
|--------------|--------------------------------------|----------------|----------------|----------------|
| A1           | Determine Whether the Act Applies    | 30 (0.42%)     | 36 (0.51%)     | 30 (0.44%)     |
| A2           | Sublet or Assignment                 | 45 (0.63%)     | 57 (0.80%)     | 49 (0.73%)     |
| A3           | Combined Application                 | 1,342 (18.84%) | 1,435 (20.14%) | 1,224 (18.12%) |
| A4           | Vary Rent Reduction Amount           | 1 (0.01%)      | 1 (0.01%)      | 0 (0.00%)      |
| T1           | Rent Rebate (e.g. illegal rent)      | 618 (8.68%)    | 578 (8.11%)    | 520 (7.70%)    |
| T2           | Tenant Rights                        | 3,676 (51.61%) | 3,548 (49.80%) | 3,587 (53.10%) |
| T3           | Rent Reduction                       | 58 (0.81%)     | 65 (0.91%)     | 43 (0.64%)     |
| T4           | Failed Rent Increase Above Guideline | 1 (0.01%)      | 1 (0.01%)      | 1 (0.01%)      |
| T5           | Bad Faith Notice of Termination      | 152 (2.13%)    | 139 (1.95%)    | 128 (1.89%)    |
| T6           | Maintenance                          | 1,198 (16.82%) | 1,264 (17.74%) | 1,171 (17.34%) |
| T7           | Suite Meters                         | 2 (0.03%)      | 1 (0.01%)      | 2 (0.03%)      |
| <b>Total</b> |                                      | <b>7,123</b>   | <b>7,125</b>   | <b>6,755</b>   |

Tenant applications were heard, on average, within 20.2 business days of their filing date, and the order issued, on average, within eight business days of the final hearing.

## Application Resolution

For the fiscal year 2012-2013, the LTB received 82,192 applications and resolved 80,261 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2012 the number of unresolved RTA applications is 9,580.

The following table shows the total number of applications received, resolved and outstanding at the end of the fiscal year, for 2012-2013 and the two previous years.

## Application Receipts and Resolutions\*

|                                   | 2012-2013 | 2011-2012 | 2010-2011 |
|-----------------------------------|-----------|-----------|-----------|
| Applications received             | 82,192    | 81,084    | 77,394    |
| Applications resolved             | 80,261    | 81,032    | 75,420    |
| Outstanding at end of fiscal year | 9,580     | 10,187    | 10,140    |

\*For fiscal 2012-2013 the LTB statistics are those reported by its case management system. For previous years, the LTB calculated these statistics manually.

The following chart shows how applications and resolution are relatively constant across regions and also illustrates the regional distribution of applications filed with the board.

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## Review and Appeal Statistics

A party to an application may ask for a review of a Board order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding.

Over the 2012-2013 fiscal year the LTB received 2,162 requests for review, 2.6 per cent of the total number of applications received. Of the review requests received, 1,337 (1.6 per cent) were sent to hearing.

Section 210 of the RTA also provides that any person affected by a LTB order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law. Over the 2012-2013 fiscal year the LTB received 151 Notices of Appeal of Board orders. This number represents 0.2 per cent of the total number of applications resolved by the LTB.

## Mediation

The Landlord and Tenant Board employs mediators throughout the province to provide mediation services where both parties involved in an application are interested in working together to resolve the issues in dispute. In the 2012-2013 fiscal year approximately 37 per cent of all applications where both parties attended the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

[tribunalsontario.ca/lrb](http://tribunalsontario.ca/lrb)

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# ONTARIO SPECIAL EDUCATION TRIBUNALS

## Vice-Chair's Message

**David A. Wright, Vice-Chair**

*Ontario Special Education (English) and (French) Tribunals*

I am pleased to present the OSET (English and French) section of the SJTO annual report.

This has been a year of significant change at the OSETs. The operations of both special education tribunals were brought within the administrative structure of the Human Rights Tribunal of Ontario (HRTO). The Registrar of the HRTO, is now OSET Secretary. In addition to my responsibilities as Associate Chair of HRTO, I have now been appointed Vice-Chair and lead of the OSETs by the SJTO Executive Chair.

I am excited about the advantages for parents and school boards that the ties with HRTO and other SJTO tribunals provide. Applications regarding the provision of special education arise frequently at HRTO, and we are building a dedicated group of adjudicators with expertise in the resolution of these cases, and others involving children, across the tribunals. These changes will enhance the ability of our stakeholders to have their disputes involving special education services resolved in a manner tailored to the nature of the dispute, by adjudicators with expertise in the substance of special education and dispute resolution in this context.

The Ontario Special Education (French) Tribunal is an important institution for franco-Ontarians and Ontario's French-language education system. We are committed to ensuring the highest quality of French-language services for individuals for francophone stakeholders when they bring a dispute about special education before the Tribunal.

I am proud of the strong foundation that previous chairs, vice-chairs and members of the OSETs have established for mediating and adjudicating special education disputes. I look forward to hearing feedback from those who use our services as we now work to continue to improve our services with the resources and expertise available in SJTO.

## Legislative Authority

The legislative mandate of the OSETs is found in section 57 of the *Education Act, R.S.O. 1990*, c. E. 2. Their